

Court No. - 29

Case :- WRIT - C No. - 6076 of 2016

Petitioner :- Krishna Agrawal

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Anand Prakash Mishra

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble V.K. Shukla, J.

Hon'ble Mahesh Chandra Tripathi, J.

Krishna Agrawal is before this Court and his submission is that the bills dated 16.12.2015 and 26.12.2015 are factually incorrect bills and require rectification.

On the matter being taken up today, Sri F.A. Ansari, Advocate, submits that the issue that is being sought to be raised by the petitioner before this Court can be very well remedied under the provisions of paragraph 6.5 of U.P. Electricity Supply Code 2005 wherein all disputes in respect of bills can be remedied.

We have the occasion to peruse the relevant provisions as it exist under U.P. Electricity Code 2005 and therein what we find that paragraph 6.5 of U.P. Electricity Supply Code 2005 provides for disputed bills and arrears.

Consequently, in the facts of the case, as per the paragraph 7.4 of U.P. Electricity Supply Code 2005 as the Executive Engineer is the competent authority to redress such a grievance of petitioner and petitioner has already represented the matter before the aforementioned authority, as such, we proceed to pass an order asking the Executive Engineer, Purvanchal Vidyut Vitaran Khand, Naini/Jhusi, 52A/28, C.Y. Chintamani Road, Allahabad to take appropriate decision on the representation of petitioner, in accordance with law, preferably within a period of next two months from the date of receipt of certified copy of this order.

With these observations/directions, writ petition is ***disposed of.***

Order Date :- 16.2.2016

Shekhar